

LEGAL FRAMEWORK FOR PERSONAL DATA PROTECTION IN PALESTINE

A Comparative Analytical Study with the EU General Data Protection Regulation (GDPR)

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I. INTRODUCTION: AI AND NLP CONTEXT

AI is blowing up right now, and Big Data is its gasoline . To teach systems like chatbots how to understand human language (NLP), tech companies collect millions of texts and posts from the internet . The massive trap here is that this data is packed with our private layouts like names, phone numbers, and IDs which is called PII . Because of this mess, we desperately need a strong legal shield so companies don't abuse our digital rights . This report checks out what data laws we have in Palestine right now, and benches our defense against the ultimate world champion: the EU GDPR

2. THE LEGISLATIVE FRAMEWORK FOR DATA PROTECTION IN PALESTINE

Palestine doesn't have one single law book for data . It's a complete patchwork, and the rules are scattered all over the place:

- *The Constitution (Basic Law):* Articles 11 and 32 say your private life and phone calls are a total red line . If someone spies on you, it's a massive crime that never expires, meaning you can sue them even 20 years later.
- *Cabinet Decision (2019):* This rule tells delivery apps and telecom companies: "You cannot sell customer data to advertisers to make money unless they clearly click YES first"
- *Cybercrime Law (2018):* This is the police law built to throw hackers in jail .Articles 7, 8, and 11 say if a hacker breaks into a system, steals data, or decrypts your private chats, they get locked up
- *The 2025 Draft Law:* The Ministry of Justice put out a new blueprint online to try and upgrade the system [en-PS]. It defines the boundaries for the *Data Controller* (the boss company holding your data) and the *Data Processor* (the team handling it) to try and copy international rules

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Comparison Dimension	EU GDPR	Palestinian Legal Status (Current Laws + Draft 2025)
Individual Consent for Data Collection	Requires explicit, free, specific, and informed consent. Grants individuals the right to withdraw consent at any time with ease.	Cabinet Decision (2019) mandates prior consent to prevent commercial exploitation. Draft 2025 reinforces this via affirmative action consent requirements.
Right of Access, Rectification & Erasure	Grants strict enforceable rights: Access, Rectification, Right to Erasure ("Right to be Forgotten"), and Data Portability.	Current laws do not guarantee these rights procedurally. Draft 2025 establishes foundational data-subject rights but has faced human rights criticism for weak erasure mechanisms.
Supervisory & Regulatory Authority	Fully independent Data Protection Authorities (DPAs) in each EU member state with wide supervisory and enforcement powers.	Draft 2025 (Article 3) assigns oversight to the 'Supervisory Authority for Trust Service

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		Providers,' an entity linked to the government – raising independence concerns.
Penalties & Enforcement Measures	Severe administrative fines up to €20 million OR 4% of annual global turnover, whichever is higher.	Current legislation relies on criminal penalties (imprisonment and limited financial fines denominated in Jordanian Dinar) under the 2018 Cybercrime Law.

4. CONCLUSIONS AND RECOMMENDATIONS FOR AI/NLP DEVELOPERS

- *The Tech Grey Area:* Because the 2025 law isn't officially active yet, Palestinian tech startups are operating in a legal "grey area" with zero clear rules . This makes starting a tech business risky because you don't know what is legal or illegal
- *Use "Privacy by Design":* Developers shouldn't wait for the government to pass the law You need to copy the GDPR rule book called "Privacy by Design" from day one This means building apps that protect user privacy automatically, so your app is future-proofed and ready to expand into international markets like Europe
- *Scrub Your Data:* Before you feed texts, chats, or posts into an AI model (NLP), you must separate and completely erase all personal names, phone numbers, and IDs .This is called anonymization [en-PS]. If your system gets hacked later, there is no private data to leak, which completely protects your company from getting sued .

5. OFFICIAL REFERENCES & SOURCES (Where the data came from)

- *Ministry of Justice Site:* The official platform where the government uploaded the new 2025 data draft law for public feedback
- *Birzeit's Muqtafi Database:* The famous local university database where we pulled the exact legal text for the 2018 Cybercrime law
- *An-Najah's Maqam Platform:* The legal database where we found the 2019 Cabinet rule about stopping apps from selling data
- *Famleh Center Paper:* The local human rights group that wrote a heavy critique on why Palestine's digital privacy laws are too weak Palestinian Official Gazette (POGAR): Decree-Law No. 10 of 2018 Full Text [mj.gov.ps]
- *European Union GDPR:* The official European law website used to pull the gold-standard rules we compared Palestine against